

The Connect Between Open Source *and* Trademarks

Open source is now inevitable for companies that want to thrive in a hyper-competitive world. There is currently no place for the old fear, uncertainty and doubt related to using open source software as it's difficult to imagine a modern technology company that doesn't use open source components.



The essence of a trademark is the association of a name with the source or origin of the goods in the marketplace. The property right in the name given to the trademark holder is balanced by the social advantage consumers derive from the assurance of quality that the name conveys. So, if a trademark causes 'confusion' or is 'likely to deceive', it can affect the source of the mark and its characteristics in a negative way.

The definition of 'trademark' under Section 2(1)(zb) of the Indian Trademarks Act, 1999, means a mark "...which is capable of distinguishing the goods or services of one person from those of others." Therefore, the use of a mark that is not capable of distinguishing the goods of such a proprietor of the trademark would not qualify for protection under the Trademark Act. This requisite of a trademark primarily mandates that it must be distinctive, i.e., it should not be devoid of a distinctive character.

Just because an open source software or project can be used and shared under liberal copyright terms does not necessarily mean that one can use the trademark of such a software in any way we like. Open source software programs and packages are named, and the names chosen are often registered as trademarks, just like proprietary software programs are. The rules that determine what names can be used for modified versions of FOSS programs are found not in the copyright licences, but in the trademark licensing policy of the entity that controls each trademark. The trademark licensing policies govern the conditions under which the names can be used to identify the software. Therefore, reading the trademark policies of any open source project should be mandated in the same way that it is for any proprietary piece of software.

In order to avoid a possible loss of the mark through a finding of 'naked licensing', the projects using trademarked names need to be prepared to show that their policies are enforced. Unlike commercial licensors, who belligerently enforce their marks, it is often in the interest of free software projects to make liberal trademark policies, allowing those downstream who modify or repackage their code to make use of their marks.

In open source software distributions, where modifications occur at many levels as code moves from upstream to multiple downstream branches, the origin of goods cannot necessarily be referred to as a single point. The packages contained within the distribution have an origin indicated by the project name associated with the package — the Apache Web server, GNU tar, etc. The distribution name indicates another point of origin — the Debian distribution's version's modified copy of the Apache Web server, for example. If you are confused about the terms of usage or have received a letter from an open source project or a commercial distributor, do seek legal counsel and don't try to sort things on your own, just because you got it off Git. **END** 🐧

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